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Act, 1911.

A.D. 1911.

And whereas under powers of certain of the former Acts the Corporation have constructed and are working tramways both within and without the city and it is expedient that the Corporation should be empowered to construct further tramways as by this Act authorised :

And whereas it is expedient that provisions should be made as in this Act contained with respect to the provision and use by the Corporation of motor omnibuses :

And whereas it is expedient that the Corporation should be authorised to make the new road and street improvements in this Act described and to exercise in relation thereto the powers by this Act conferred :

4 Edw. VII.
c. clxii.

And whereas by the Order of 1904 the boundaries of the city were extended so as to include the districts formerly the urban district of Walker and the urban district of Benwell and Fenham and a part of the township of Kenton :

And whereas in pursuance of the provisions of the said Order the Corporation have taken over the duties and obligations of the councils of the said urban districts and have taken into their employment various officers and servants formerly employed by the said councils :

2 Edw. VII.
c. 42.

And whereas there are certain officers and servants in the employment of the Corporation as the local education authority for the city who were formerly in the employment of the school board of the city and county of Newcastle-upon-Tyne and of the school boards and local education authorities having jurisdiction over the areas added to the city under the provisions of the Order of 1904 and there are other officers and servants formerly in the service of education authorities or managers or trustees of schools who are now in the employment of the Corporation as the education authority for the city under the Education Act 1902 and there are also other officers and servants in the employment of the Corporation in their capacity of trustees of certain hospitals in the city :

4 Edw. VII.
c. ccxx.

And whereas by the Act of 1904 powers were conferred upon the Corporation for the establishment under provisions contained in that Act of a fund for the superannuation of officers and servants in the service and employment of the Corporation :

And whereas the said fund came into operation on the nineteenth day of December one thousand nine hundred and four and contributions by officers and servants of the Corporation commenced on the twentieth day of March one thousand nine hundred and five and it is expedient that officers and servants of the councils and the other authorities and bodies in this Act specified who are now in the employment of the Corporation should be entitled to the benefits of the superannuation fund of the Corporation and should contribute thereto as if the service of the said officers and servants with the said councils authorities and bodies had been with the Corporation and that officers and servants in the employment of the Corporation in their capacity of trustees of hospitals should participate in the superannuation fund as though they were officers and servants of the Corporation and it is expedient that the provisions in that behalf contained in this Act should be made : A.D. 1911.

And whereas it is expedient that the provisions of the Act of 1904 with respect to the superannuation fund should be repealed and that the provisions herein-after contained with respect to that fund should be made :

And whereas there is within the city a tract of land containing about one thousand one hundred and fifty acres called the Town Moor certain parts of which are respectively known by the distinctive names of the Castle Leazes and the Nuns Moor :

And whereas the Corporation are entitled to the soil of the Town Moor for an estate in fee simple but the same is subject to a right or benefit of herbage in the resident freemen or burgesses of the city and the resident widows of deceased freemen or burgesses of the city which right or benefit is in this Act called "herbage right" :

And whereas by the Act of 14 George III. chapter 105 (local) provisions were enacted for and in relation to the enjoyment management and improvement of the surface of the Town Moor and within certain limits the enclosure thereof and provision was also made for the letting of parts thereof : 14 Geo. III.
c. 105.

And whereas by and for the purposes of the Act of 1870 (section 6) a committee of stewards and wardens were constituted (in this Act referred to as "the stewards' committee") who were thenceforward authorised and required to act for and on behalf of the stewards and wardens and freemen and widows of freemen for all purposes relating to the Town Moor : 33 & 34 Vict.
c. cxx.

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55 & 56 Viet.
c. ccxxvi.

And whereas under the Act of 1892 certain arrangements for the enclosure and use of certain portions of the Castle Leazes and the Town Moor were sanctioned and confirmed and under the said Act the Corporation hold a portion of the Castle Leazes as a recreation ground :

And whereas by an agreement dated the sixteenth day of March one thousand nine hundred and six made between the Corporation of the one part and the stewards' committee of the other part it was agreed that the Corporation should enclose a further portion of the Castle Leazes containing three acres two roods and twenty perches and should plant and lay out and maintain the same as ornamental and recreation grounds freed and discharged from the herbage right and that the Corporation should pay in respect thereof certain yearly sums and that the said sums should be applied in the improvement of the Town Moor or otherwise for the benefit of the freemen and widows of freemen at the discretion of the stewards' committee :

And whereas the further portion of the Castle Leazes so agreed to be enclosed is shown upon a plan signed in duplicate by Arthur Maule Oliver on behalf of the Corporation and John Duguid Walker on behalf of the stewards' committee and thereon distinguished by red colour (which plan is herein-after referred to as " the Castle Leazes plan ") and it is expedient that the Corporation should be authorised to hold the said further portion of the Castle Leazes for the purposes of ornamental and recreation grounds and by way of addition to the Leazes Park and that the provisions of this Act relative thereto should be made :

And whereas by letters patent by warrant under His late Majesty's sign-manual dated the twenty-seventh day of July one thousand nine hundred and six it was declared and ordained that from and after the date thereof the chief magistrate then and for the time being of the city of Newcastle-upon-Tyne should be styled entitled and called lord mayor of Newcastle-upon-Tyne and thenceforth at all times should be entitled to assume and use and to be called and named by the style title and appellation of lord mayor of Newcastle-upon-Tyne and to enjoy and use all and singular the rights privileges pre-eminences and advantages to the degree of a lord mayor in all things duly and of right belonging and it is desirable that the style of the Corporation should be " The lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne " :

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to the prevention of the spread of infectious disease and the regulation of common lodging-houses and that the provisions of this Act with respect to the sanitation good government and management of the city should be made: A.D. 1911.

And whereas it is expedient that further borrowing powers be conferred on the Corporation for the purposes of this Act and that other financial provisions as in this Act contained should be made:

And whereas it is expedient that the other provisions in this Act contained should be sanctioned:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas estimates have been prepared by the Corporation of the cost of constructing the street works and tramways by this Act authorised (including the amount necessary for the purchase of such of the lands as are required to be purchased therefor) and such estimates are as follows:—

For street works twenty thousand seven hundred pounds;

For the construction of the tramways sixty-one thousand pounds;

For equipment of the tramways thirteen thousand four hundred and fifty-one pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the seventh day of December one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Newcastle Daily Journal* being a newspaper published and circulating in the city (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the general rate the improvement rate the city fund and city rate the tramway revenue and tramway rate and the district fund and general district rate in equal proportions:

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And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the first day of March one thousand nine hundred and eleven being not less than fourteen days after the deposit in Parliament of the Bill for this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the first schedule to the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines situations and levels of the tramways and street works by this Act authorised and plans showing the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Northumberland and the clerk of the peace for the city and county of Newcastle-upon-Tyne and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) : —

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Newcastle-upon-Tyne Corporation Act 1911 and this Act and the former Acts may be cited as the Newcastle-upon-Tyne Improvement Acts 1837 to 1911.

Act divided
into parts.

2. This Act is divided into parts as follows :—

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Street Works.
- Part IV.—General Provisions as to Works.

Part V.—Lands.

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Part VI.—Town Moor.

Part VII.—Quays.

Part VIII.—Sanitary.

Part IX.—Infectious Disease.

Part X.—Common Lodging-houses.

Part XI.—Superannuation.

Part XII.—Finance.

Part XIII.—Miscellaneous.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 so far as the same are respectively applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with this Act.

Incorporation of general Acts.

4. In this Act unless otherwise expressly provided or the context otherwise requires—

Interpretation.

Terms to which meanings are assigned by any Act wholly or partially incorporated with this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction;

“The tramways” means the tramways authorised by this Act;

“The Corporation tramways” includes the tramways and all tramways and tramroads for the time being belonging to or leased or worked by the Corporation;

“Mechanical power” includes electric and every other motive power not being animal power;

“Street works” means the new street and the alteration and improvement of streets and works connected therewith by this Act authorised;

“The city” means the city and county of Newcastle-upon-Tyne;

“The Corporation” means the lord mayor aldermen and citizens of the city;

“The council” means the council of the city;

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“The town clerk” “the treasurer” “the surveyor” “the medical officer” and “the inspector of nuisances” respectively mean the town clerk the city treasurer the town surveyor the medical officer and any inspector of nuisances appointed by the council in pursuance of the powers of any public Act or this Act and respectively include any person duly authorised to discharge temporarily the duties of those officers;

“Street” includes any highway and any public bridge and any public road lane footway square court alley or passage whether a thoroughfare or not;

“Court” means the whole or any part of any existing or future court chare alley entry passage yard or place used with or appurtenant to dwelling-houses or otherwise and open to a public street and whether a thoroughfare or not;

“The quays of the Corporation” has the meaning assigned thereto by the Act of 1904;

“House” includes schools factories and all buildings in which persons dwell or are employed;

“Owner” means the person who for the time being receives the rack rent of the lands with reference to which that term is used whether on his own account or under or by virtue of any mortgage or charge or as agent or trustee for any other person or who would so receive the same if the lands were let at a rack rent and includes every successive owner from time to time of the lands for any part of the time during which the enactment wherein that term is used operates in relation to such lands;

“Rack rent” means rent which is not less than two-thirds of the full net annual value of the property out of which the rent arises and the full net annual value shall be taken to be the rent at which the property might reasonably be expected to let from year to year after deducting therefrom all usual tenants’ rates and taxes and tithe commutation rent charge (if any) the probable average annual cost of the repairs insurance and other expenses (if any) necessary to maintain the same in a state to command such rent;

“Occupier” means the person for the time being in actual occupation or possession of the lands with reference to which that term is used;

“Food” includes every article other than water used for food or drink by man; A.D. 1911.

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and Acts amending the same or otherwise relating to municipal corporations in England;

“The Public Health Acts” means the Public Health Act 1875 and any Act or Acts amending the same;

“Daily penalty” means a penalty for every day on which an offence is continued after conviction;

“Infectious disease” means any infectious disease to which for the time being the Infectious Disease (Notification) Act 1889 applies within the city;

“The city fund” and “the city rate” mean respectively the city fund and the city rate of the city;

“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district of the Corporation acting by the council as a sanitary authority;

“The general rate” and “the improvement rate” mean respectively the general rate and the improvement rate authorised to be levied by the Act of 1865;

“Tramway revenue” means all revenue of the Corporation tramways;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rent charge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money

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and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rent charges or securities payable to bearer or any securities of the Corporation ;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from the lands undertakings and other property for the time being of the Corporation and rates and moneys leviable by the Corporation.

PART II.

TRAMWAYS.

Power to
make tram-
ways.

5. Subject to the provisions of this Act the Corporation may lay down use and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways herein-after described with all necessary and proper works appliances apparatus and conveniences connected therewith or for making working and using the same respectively :

Provided that the portion of Tramway No. 1 shown on the deposited plans as intended to pass along so much of the High Street as is southward of the vicarage and along Station Road in the urban district of Newburn shall not be constructed but in lieu of that portion of tramway the Corporation shall construct the tramway referred to in the section of this Act of which the marginal note is “ For protection of Duke of Northumberland.”

The following are the tramways herein-before referred to and authorised by this Act :—

Tramway No. 1. A single line with passing places 3 miles 5 furlongs 0·60 chain or thereabouts in length situate partly in the city and partly in the urban district of Newburn in the county of Northumberland commencing in the parish of Benwell in the city by a junction with the existing tramway in Scotswood Road at the termination thereof and terminating in Newburn Lane in the parish of Newburn at
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a point half a chain or thereabouts southward of the West Turnpike: A.D. 1911.

Tramway No. 2. A double line 7 furlongs 80 chain or thereabouts in length situate wholly in the city commencing in the parish of All Saints by a junction with the existing tramway in New Bridge Street at a point thereon 1 chain or thereabouts westward of the junction of Clarence Street with New Bridge Street and terminating in the parish of Jesmond by a junction with the existing tramway in Jesmond Road at a point thereon 1 chain or thereabouts north-east of the junction of Jesmond Road and Sandyford Road:

Tramway No. 2A. A junction tramway double line 1.4 chains or thereabouts in length situate wholly in the parish of All Saints commencing in New Bridge Street by a junction with the existing tramway therein 1 chain or thereabouts east of the junction of New Bridge Street with Clarence Street and terminating in Clarence Street by a junction with Tramway No. 2 at a point one chain or thereabouts northwards from the junction of Clarence Street and New Bridge Street:

Tramway No. 3. A double line 5 furlongs 4.2 chains or thereabouts in length situate wholly in the city commencing by a junction with the existing tramway in Jesmond Road in the said parish of Jesmond at a point thereon about 1 chain northward of the junction of Churchill Gardens with Jesmond Road and terminating in the parish of Heaton in Chillingham Road by a junction with Tramway No. 4 at a point thereon 1.5 chains or thereabouts south of the junction of Benton Road with Chillingham Road:

Tramway No. 3A. A junction tramway double line 2 chains or thereabouts in length situate wholly in the said parish of Heaton commencing in Benton Road by a junction with Tramway No. 3 at a point thereon 1.4 chains or thereabouts south-west of the junction of Benton Road with Chillingham Road and terminating in Benton Road by a junction with Tramway No. 5 at a point thereon half a chain or thereabouts north of the junction of Chillingham Road with Benton Road:

Tramway No. 4. A double line 6 furlongs 8.5 chains or thereabouts in length situate wholly in the city commencing in

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the parish of Walker by a junction with the existing tramway in Shields Road at a point thereon 1 chain or thereabouts westward from its junction with Chillingham Road and terminating in the parish of Heaton in Chillingham Road by a junction with Tramway No. 3 at a point thereon 1.5 chains or thereabouts south of the junction of Chillingham Road with Benton Road :

Tramway No. 5. A double line 3 furlongs 1.7 chains or thereabouts in length situate wholly in the said parish of Heaton commencing in Chillingham Road by a junction with Tramway No. 4 at a point thereon 1.5 chains or thereabouts south of the junction of Chillingham Road and Benton Road and terminating in Benton Road at the point where the city boundary crosses that road.

Gauge of tramways.

6. The tramways shall be constructed on a gauge of 4 feet 8½ inches and carriages or trucks adapted to run on railways shall not be used thereon.

Restrictions on construction of certain tramways.

7. — (1) The Corporation shall not lay down Tramway No. 1 by this Act authorised until after the widenings and works hereinafter described and authorised by this Act under the numbers 2 5 6 7 8 9 10 11 and 13 shall have been commenced and they shall not (except at the places indicated on the deposited plans) lay down any part of Tramway No. 1 so that for a distance of thirty feet or upwards a less space than nine feet six inches shall intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway.

(2) The Corporation shall not lay down Tramway No. 3 by this Act authorised until they shall have commenced to construct the street works herein-after described under the numbers 14 and 15.

Period for completion of tramways.

8. If the tramways shall not be completed and opened for public traffic within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for constructing the same or otherwise in relation thereto shall cease except as to such tramways or so much thereof as shall then be completed.

Tramways to form part of tramway undertaking of Corporation.

9. Subject to the provisions of this Act the tramways shall for all purposes be deemed to form part of the tramway undertaking of the Corporation and of the Corporation tramways.

10. No part of the tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. A.D. 1911.
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 Inspection
 by Board of
 Trade.

11. The following sections of the following Acts' (that is to say) :— Incorpora-
 tion of
 certain
 sections of
 Act of 1877
 Improve-
 ment Act of
 1882 and
 Acts of 1899
 1902 and
 1904.

Of the Act of 1877—

- Section 15 (Traffic upon tramways);
- Section 16 (Corporation may use tramways for sanitary purposes &c.);
- Section 18 (Tolls for animals goods &c.);
- Section 19 (Regulations as to tolls);
- Section 20 (Limitation of tolls in case of demise);
- Section 26 (Lessees not to be bound to carry goods &c. unless as provided herein); and
- Section 27 (Provisions as to carriage of goods, &c.):

Of the Improvement Act of 1882—

- Section 22 (By-laws as to tramways);
- Section 23 (Penalty for not maintaining rails and road in good condition);
- Section 24 (Application of road materials excavated in construction of works);
- Section 25 (Provisions as to construction of tramways);
- Section 26 (As to rails of tramways);
- Section 28 (Passengers' luggage); and
- Section 29 (Penalties under the tramway provisions):

Of the Act of 1899—

- Section 13 (Temporary tramways);
- Section 14 (Junctions with tramways which can be worked in connection with Corporation tramways);
- Section 19 (Provisions as to motive power);
- Section 20 (Special provisions as to use of electrical power);
- Section 25 (Powers of sale working &c.);
- Section 26 (Powers as to supply of electric energy);
- Section 27 (Power to Corporation to work tramways); and
- Section 29 (As to fares on Sundays or holidays):

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Of the Act of 1902—

- Section 12 (Rates for passengers);
- Section 13 (Periodical revision of rates and charges);
- Section 19 (Corporation and local and road authorities may agree for widening roads);
- Section 20 (Power to construct and provide appliances);
- Section 22 (Cheap fares for labouring classes);
- Section 23 (Payment of tolls);
- Section 25 (Local authority to have access to sewers);
- and
- Section 35 (Penalty for malicious damage):

Of the Act of 1904—

- Section 14 (Corporation may reduce width of footway for constructing tramway);
- Section 16 (Power to lay down double or interlacing lines in place of single lines and vice versa); and
- Section 17 (Cross-overs to be constructed in certain cases):

shall so far as the same are applicable in that behalf and are not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the tramways.

As to
erection of
posts &c. on
carriageway.

12. No post or other apparatus for working the tramways shall be erected on the carriageway of any street or road except with the consent of the Board of Trade.

Power to
make
additional
crossings &c.

13. The Corporation may with the consent of the Board of Trade and subject to the provisions of this Act but as to any tramways without the city with the consent also of the local authority and road authority make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Corporation or their lessees. Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the

road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

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14. All works to be executed by the Corporation in any road for working the tramways by mechanical power shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 and section 33 of the Tramways Act 1870 as if they had been therein expressly mentioned and in construing those sections for the purposes of this section the word "wires" shall include electric lines as defined by the Electric Lighting Act 1882.

Mechanical power works to be subject to sections 30 and 33 of Tramways Act 1870.

15. Any company authorised by special Act or Provisional Order to supply gas water or electrical energy to whom the Corporation shall have given notice under section 30 of the Tramways Act 1870 for the purposes of this Act may if they so elect and within seven days from the receipt of such notice from the Corporation give written notice thereof to the Corporation themselves execute all such alterations to their mains pipes tubes wires or apparatus as may be necessary and the reasonable costs of executing such alterations shall be repaid by the Corporation to such company provided always that such alterations shall be carried out to the reasonable satisfaction of the engineer of the Corporation and any dispute arising under this section shall be settled in manner provided by section 33 of the Tramways Act 1870.

Where mains &c. require alteration owning company may do the work.

16. Tramway No. 1 shall be used only for the carriage of passengers and their luggage.

Purposes for which Tramway No. 1 may be used.

17. For protection of the North Eastern Railway Company (herein-after in this section called "the company") the following provisions shall unless otherwise agreed between the company and the Corporation apply and have effect in respect to the tramways and the works by this Act authorised (in this section referred to as "the tramways") :—

For protection of North Eastern Railway Company as to tramways.

- (1) The Corporation shall so construct maintain and use the tramways upon or under any railway bridge or culvert

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belonging to or maintainable by the company or any approach thereto (in this section referred to as "the bridge") as not injuriously to affect the same and in the event of any injury or damage being caused to the bridge by the construction maintenance or user of the tramways the Corporation shall at their own expense and to the reasonable satisfaction of the company restore the same to as good a condition as it was in before such injury was occasioned :

- (2) The Corporation shall as early as practicable restore any road damaged by the execution of their works which the company are under an obligation to maintain and if they fail to do so the company may restore such road at the expense of the Corporation :
- (3) Whenever the company shall require to reconstruct strengthen alter or repair the bridge or to widen or alter their railways the Corporation shall pay to the company any additional expense to which the company may be put in carrying out such works by reason of the existence of the tramways so far as such additional expense is attributable to any tube pipe wire or other work for propelling the cars upon the tramways or conveying energy or power for that purpose and if it shall be necessary for carrying out such works as aforesaid that the working and user of the tramways over the bridge shall be wholly or partially stopped or delayed or that the tramways shall be temporarily diverted or removed and the company shall (except in cases of emergency) give to the Corporation seven clear days' notice in writing requiring such stoppage delay diversion or removal the working and user of the tramways shall be stopped or delayed or the tramways shall be diverted or removed accordingly but only for so long as shall be absolutely necessary for carrying out such works as aforesaid If having regard to the nature and extent of such works of the company and to the traffic through or over the bridge a temporary diversion of the tramways is necessary the working and user of the tramways shall not be stopped or delayed longer than is absolutely necessary for effecting such diversion and the restoration of the tramways The company shall not be liable for any

compensation or claim in respect of such stoppage delay A.D. 1911.
diversion or removal of the tramways as aforesaid : —

- (4) If the construction or user of the tramways render it necessary that the bridge should be rebuilt or strengthened the company shall give to the Corporation notice accompanied by sufficient plans and specifications of the intended works and may after fourteen days from the date of the notice (or forthwith in case of emergency) proceed with due despatch to execute all such works as may be reasonably necessary and the company may recover from the Corporation all moneys reasonably expended by the company in the execution thereof :
- (5) The Corporation shall indemnify the company against any expense which they may be put to in repairing and maintaining so much of the road over the bridge as the Corporation are liable to repair and maintain under the provisions of the Tramways Act 1870 :
- (6) If having regard to the relative position of the works of the Corporation and the works of the company at any point where the tramways will be constructed over or under the railway of the company it becomes advisable that the telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alterations and the reasonable expense of executing such works shall be borne by the Corporation :
- (7) Any works under this section in so far as they may affect or interfere with the bridge shall if the company so require be executed by them at the reasonable expense of the Corporation and if carried out by the Corporation shall if the company so desire be executed under the superintendence of the company's engineer and such superintendence if given shall be at the cost of the Corporation but if after seven days' notice given by the Corporation of their intention to do the work such superintendence is refused or withheld it shall be lawful for the Corporation to do the work without such superintendence :
- (8) The Corporation shall not without the consent in writing of the company purchase or take any property of the

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company but they may purchase and take and the company shall sell and convey such right or easement or privilege over or upon any lands or works of the company delineated on the deposited plans as shall be necessary for the purpose of the construction of the tramways:

- (9) If any difference shall arise under the foregoing provisions of this section between the Corporation and the company the matter in difference shall be determined by an arbitrator to be appointed unless otherwise agreed by the Board of Trade.

For protection of Newcastle and District Electric Lighting Company Limited.

18. The provisions of sections 30 32 and 33 of the Tramways Act 1870 shall (subject as herein-after provided) extend and apply to any cable apparatus or appliance of the Newcastle and District Electric Lighting Company Limited (in this section called "the company") which may be affected by the execution of the works by this Act authorised as if those works were a tramway within the meaning of the said sections and as if the said cable apparatus or appliance were a main or pipe or other work for the supply of gas. Provided always that if within seven days of the receipt by the company of the notice required by sub-section (1) of the said section 30 (as applied by this section) to be given by the Corporation the company shall by notice in writing so require the company may by their own engineer or workmen execute any work of lowering or altering the position of any cable apparatus or appliance which they would be entitled under the provisions of the said section (as applied by this section) to require the Corporation to execute and shall carry out such work with all reasonable speed and the Corporation shall on the completion thereof pay to the company the reasonable expenses incurred by them in carrying out such work.

Widening of Newburn Bridge.

19. The Corporation shall not commence the construction of the portion of Tramway No. 1 so far as such tramway is to be laid on the Newburn Bridge or the approaches thereto on either side of such bridge vested in the county council of Northumberland until such bridge and its approaches on either side have been widened by and at the expense of the Corporation to such an extent and in such manner as may in the interests of public safety having regard to the construction of Tramway No. 1 as a single line over the bridge and on the approaches be necessary or desirable.

Any question as to the extent or manner of such widening which may under the circumstances be necessary or desirable under the provisions of this section shall in default of agreement between the Corporation and the county council be determined by an engineer or other fit person nominated as referee by the Board of Trade on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to such reference.

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20. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Provision as to general Tramway Acts.

21. In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect:—

For protection of Post Office telegraph lines.

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Corporation as to compliance with this sub-section shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity is done within ten yards of any part of a telegraphic line

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of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations:
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section

if they satisfy the court having cognisance of the case A.D. 1911.
 that the immediate doing of any act or the execution
 of any work in respect of which the penalty is claimed
 was required to avoid an accident or otherwise was a
 work of emergency and that they forthwith served on
 the Postmaster or sub-Postmaster of the postal telegraph
 office nearest to the place where the act or work was
 done a notice of the execution thereof stating the reason
 for doing or executing the same without previous notice :

- (7) For the purposes of this section a telegraphic line of the
 Postmaster-General shall be deemed to be injuriously
 affected by an act or work if telegraphic communication
 by means of such line is whether through induction or
 otherwise in any manner affected by such act or work
 or by any use made of such work :
- (8) For the purposes of this section and subject as therein
 provided sections 2 10 11 and 12 of the Telegraph
 Act 1878 shall be deemed to be incorporated with
 this Act :
- (9) The expression "electric line" has the same meaning in
 this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section
 which is directed to be determined by arbitration shall
 be determined by an arbitrator appointed by the Board
 of Trade on the application of either party whose decision
 shall be final and sections 30 to 32 both inclusive of
 the Regulation of Railways Act 1868 shall apply
 in like manner as if the Corporation or their agents were
 a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive
 the Postmaster-General of any existing right to proceed
 against the Corporation by indictment action or other-
 wise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Corporation" includes
 their lessees and any person owning working or running
 carriages on any of the Corporation tramways.

22.—(1) It shall be lawful for the Postmaster-General in any Use of tram-
way posts by
Postmaster-
General.
 street or public road or part of a street or public road in which
 he is authorised to place a telegraph to use for the support of

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A.D. 1911. such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Corporation in connection with the tramways and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

- (A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (B) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:
- (C) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (D) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to

the conditions of attachment shall be determined as A.D. 1911.
herein-after provided : —

- (E) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road :
- (F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair :
- (G) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants :
- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as herein-after provided :
- (I) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants :

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(J) If it shall become necessary or expedient to alter the position of ²or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

PART III.

STREET WORKS.

Power to
execute
street works.

23. Subject to the provisions of this Act the Corporation may in the lines and situation shown on the deposited plans and

according to the levels shown on the deposited sections make and maintain the following street works :— A.D. 1911.

Work No. 1. An alteration and lowering of the levels of Scotswood Road wholly in the parish of Benwell in the city from a point 3 chains or thereabouts west of Harold Street to a point 0·5 chain or thereabouts east of Denton Road :

Work No. 2. A widening of Scotswood Road on the southern side partly in the city and partly in the urban district of Newburn in the county of Northumberland commencing in the parish of Benwell in the city at a point in that road 0·4 chain or thereabouts east and terminating at a point in that road in the parish of East Denton in the urban district of Newburn 0·5 chain or thereabouts west of the centre of Denton Burn :

Work No. 3. An alteration and lowering of the levels of Scotswood Road wholly in the said parish of East Denton in the said county between points respectively 4 chains and 3 chains or thereabouts east of the centre of Copperas Lane :

Work No. 4. An alteration and lowering of the levels of Scotswood Road wholly in the said parish of East Denton between points respectively 2 chains or thereabouts east and 1 chain or thereabouts west of the centre of Copperas Lane :

Work No. 5. A widening of Scotswood Road on the north side wholly in the said parish of East Denton commencing at a point 2·6 chains east of the south-east corner of East Denton House and terminating at the south-east corner of the police station in Bell's Close :

Work No. 6. A widening and improving of Scotswood Road on the south side wholly in the urban district of Newburn commencing in the said parish of East Denton at a point 1·2 chains west of a point opposite the south-east corner of East Denton House and terminating in the parish of West Denton 0·7 chain west of the point where the boundary between the parishes of East Denton and West Denton crosses that road :

Work No. 7. A widening of Scotswood Road on the southern side wholly in the parish of Sugley in the urban district of Newburn in the said county commencing at a point opposite Sugley Cottage and terminating at a point about 0·7 chain

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south from the centre of the bridge carrying that road over the North Eastern Railway at Lemington Station :

Work No. 8. A widening of Northumberland Road on the south-east side wholly in the parish of Newburn Hall in the urban district of Newburn in the said county commencing at the south-east corner of the bridge over the North Eastern Railway and terminating at the western end of the road leading to High Row :

Work No. 9. A widening of Northumberland Road on the north-west side wholly in the said parish of Newburn Hall commencing at a point about 1·5 chains south-west of the south-western corner of the said bridge over the North Eastern Railway and terminating at the south-east corner of the Lemington Hotel :

Work No. 10. A new road wholly in the said parish of Newburn Hall commencing by a junction with Lemington Road at a point about 2 chains south-east of the centre of the bridge carrying the North Eastern Railway over that road at Sandy Banks passing under the said railway by means of a bridge on the eastern side of the existing bridge and terminating by a junction with Lemington Road at a point about 6·2 chains north-westward of the centre of the said existing bridge :

Work No. 11. An alteration and lowering of the levels of Lemington Road in the parishes of Newburn Hall and Newburn in the urban district of Newburn in the said county commencing at a point in the parish of Newburn Hall 5 chains or thereabouts east of the centre of the bridge over the New Burn and terminating at a point in the parish of Newburn 0·3 chain east of the centre of the said bridge :

Work No. 12. A widening of the western side of High Street and the northern and eastern sides of Station Road wholly in the said parish of Newburn commencing in High Street at a point opposite or nearly opposite the northern side of the Manor House and terminating at a point 1 chain or thereabouts north of the junction of Station Road and Grange Road :

Work No. 13. A widening improvement and alteration of Newburn Lane on both sides thereof wholly in the said parish

of Newburn commencing at a point 1 chain or thereabouts to the north-west of Rupert Terrace and terminating at a point 4·5 chains or thereabouts south-east of the West Turnpike: A.D. 1911.

Work No. 14. An alteration and raising of the level of Benton Bank wholly in the city commencing in the parish of Jesmond at a point 1·5 chains or thereabouts eastward of the south-western corner of the Old Toll House and terminating in the parish of Heaton at a point about 2 chains east of the centre line of the bridge over Benton Bank into Armstrong Park:

Work No. 15. A widening at the corner of Benton Road and Chillingham Road on the southern side of Benton Road and the western side of Chillingham Road wholly in the parish of Heaton in the city commencing in Benton Road at a point 1·4 chains south-west of the centre of Chillingham Road and terminating in Chillingham Road at a point 1·5 chains south of the centre of Benton Road.

24. For the protection of the Most Noble Henry George Duke of Northumberland K.G. (who and whose heirs sequels in estate and assigns are herein-after referred to as "the Duke") the following provisions shall unless otherwise agreed between the Corporation and the Duke have effect (that is to say):—

For protection of Duke of Northumberland.

(1) Notwithstanding anything shown on the deposited plans or contained in this Act the Corporation shall not acquire for the purposes of the street widenings and works by this Act authorised any other property of the Duke than is shown by pink and blue colour upon the plan signed by Sir William Edwin Briggs Priestley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which is deposited in the Private Bill Office of the House of Commons and another copy in the Parliament Office of the House of Lords (which plan is herein-after referred to as "the signed plan"):

(2) The lands coloured pink on the signed plan shall be used by the Corporation for the purpose only of widening the streets on which such lands now abut and the lands coloured blue on the signed plan shall be used by the Corporation for the purpose only of constructing a

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public road with a tramway thereon and the Corporation shall with all convenient speed proceed with the construction of such road and the tramway thereon and shall complete the same within three years from the passing of this Act.

For protection of Newburn Urban District Council.

25. For the protection of the Newburn Urban District Council (herein-after called "the council") the following provisions shall unless otherwise agreed between the Corporation and the council have effect (that is to say) :—

- (1) Notwithstanding anything shown upon the deposited plans or contained in this Act the Corporation shall not construct the portion of Tramway No. 1 shown on the deposited plans as intended to pass along so much of the High Street as is southward of the vicarage and along Station Road but shall construct with and as part of the new road to be constructed as provided by the section of this Act of which the marginal note is "For protection of Duke of Northumberland" a tramway in lieu of such portion of the said Tramway No. 1 :
- (2) Subject as aforesaid the Corporation shall forthwith on the passing of this Act proceed at their own expense to lay down and equip Tramway No. 1 as by this Act required to be constructed and to execute and complete the street widenings and works in connection therewith and shall open the said tramway for public traffic within three years from the date of the passing of this Act :
- (3) One-third of the cost of the widening and alteration of bridges and two-thirds of the cost of street widenings and improvements in connection with the said Tramway No. 1 or the total sum of six thousand three hundred pounds whichever shall be the less shall be borne and paid by the council and the remainder of such costs shall be borne and paid by the Corporation :
- (4) The council shall pay their proportion of the costs to the Corporation by equal yearly instalments of principal and interest during a period of thirty years such interest being calculated at a rate not exceeding three

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and three quarters per centum per annum The first A.D. 1911
of such instalments shall become due and payable at
the expiration of one year from the date on which the
said Tramway No. 1 is first open for public traffic :

- (5) Section 43 of the Tramways Act 1870 shall extend and apply to so much of Tramway No. 1 by this Act authorised as is within the district of the council Provided that the said section shall for the purposes of this section be read and construed as though the words “ thirty years from the date of the opening for public “ traffic of that tramway ” were substituted in the said section 43 for the words “ twenty-one years from “ the time when such promoters were empowered to “ construct such tramway ” :

- (6) The Corporation shall not charge on the said tramway higher fares than the following :—

For each such stage upon the said tramway as the Corporation may appoint not in any case being less than one mile and a quarter the sum of one penny ;

To or from the Newburn Station from or to the Central Station at Newcastle the sum of fourpence :

- (7) The Corporation shall at their own cost properly kerb channel metal drain and otherwise complete the said new road and the said street widenings and works and the said new road shall on its completion become and be a highway and the said street widenings and works shall when completed be deemed to form part of the street or road in which they have been respectively constructed and the same and the new road when completed shall vest in the council for the same purposes and to the same extent as other highways in the district :

Provided always that nothing contained in this section shall relieve the Corporation from any obligation to repair any part of any such street or road which they may be or become liable to repair under the Tramways Act 1870 :

- (8) The Corporation shall not in the execution of Work No. 10 described in this part of this Act alter the level of the

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existing roads and shall not alter the level of the existing road by the execution of Works Nos. 3 and 4 described in this part of this Act if by agreement with the owners of the bridges over the road at those points the Corporation become entitled to raise the said bridges or cause the same to be raised to a sufficient height at a cost to the Corporation not exceeding the present estimated cost of the said Works Nos. 3 and 4 respectively :

- (9) The Corporation shall to the extent required by the Tramways Act 1870 pave the roads in which the said tramway is laid in the urban district of Newburn with good hard whin or granite setts :
- (10) The Corporation shall not without the consent of the council permit any advertisements to be displayed upon any posts standards or brackets erected by the Corporation in the said district except advertisements relating to the working or use of the Corporation tramways and the Corporation shall if and when required by the council forthwith remove any advertisements that may at any time be affixed thereto without or in contravention of the terms of such consent :
- (11) Whenever it shall become necessary to remove snow which impedes the tramway traffic in the said district the Corporation shall remove the snow from the tramway track and from a space of eighteen inches beyond the outer rails of the tramway on each side thereof but shall not without the consent of the surveyor of the council use salt or chemicals for the purpose :
- (12) No refuse from ashpits or other refuse shall be brought by means of the said tramway into the said district from the city without the consent in writing of the council under the hand of their clerk :
- (13) All paving metalling material and other substances excavated by the Corporation in the construction of their works from any road under the jurisdiction of the council may be used by the Corporation in connection with the laying of so much of the said tramway and the execution by the Corporation of such of the street widenings and works to be carried out by the Corpora-

tion in connection therewith as are within the said district and any surplus paving metalling or material not so used shall belong to the council and be delivered by the Corporation to them at such place or places as the council may direct : A.D. 1911.

(14) The council shall not be liable for any damage to the said tramway or to any passenger thereon or to the electric equipment thereof or to any car or other vehicle caused by or arising from or by reason of the failure of any sewer of the council over or alongside of or near to which the said tramway may be constructed unless such damage is caused by neglect or negligence on the part of the council or their contractors or agents or the servants of any of them :

(15) If any dispute or difference shall arise between the Corporation and the council under the provisions of this section the same shall be referred to arbitration under the Arbitration Act 1889 or any statutory modification or re-enactment thereof.

26. For the protection of the Northumberland County Council (in this section called "the county council") the following provision shall unless otherwise agreed between the Corporation and the county council have effect (that is to say) :— For protection of Northumberland County Council.

Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not enter upon take or use any part of the premises belonging to the county council of Northumberland and known as the Scotswood Police Station.

PART IV.

GENERAL PROVISIONS AS TO WORKS.

27. Subject to the provisions of this Act the Corporation may within the limits of deviation shown on the deposited plans make and maintain all such approaches retaining walls piers abutments embankments girders piling cantilevers bridges arches sewers drains goits culverts and excavations and other works and conveniences connected with the street works and the tramways by this Act authorised as they may deem necessary. Power to make general works.

28. In constructing the street works by this Act authorised the Corporation may deviate from the centre line shown on the Power of deviation.

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A.D. 1911. deposited plans to the extent of the limits of deviation marked thereon and may deviate vertically from the levels shown on the deposited sections (a) in the case of street works for or in connection with Tramway No. 1 and Tramway No. 3 by this Act authorised to any extent not exceeding six feet and (b) in the case of any other street works to any extent not exceeding two feet.

Incorporation of section 13 of Improvement Act of 1882.

29. Section 13 (Power to alter pipes &c.) of the Improvement Act of 1882 shall so far as the same is applicable and is not inconsistent with the provisions of this Act extend and apply mutatis mutandis to and in relation to the construction and maintenance of the street works by this Act authorised and the tramways.

Temporary stoppage of streets.

30. The Corporation may during the execution and for the purposes of any works by this Act authorised but as to any works in any district without the city only with the consent of the local and road authority having jurisdiction over the street or road to be stopped up from time to time close any street for public traffic and may for any reasonable time prevent all persons from passing along and using the same other than foot passengers bonâ fide going to or returning from any house in the street or the officers or servants of any gas or water company or company supplying electrical energy requiring to pass along enter upon or break up the same for the purposes of their undertaking. The Corporation shall provide reasonable access for foot passengers bonâ fide going to or returning from such houses.

Power to make subsidiary works.

31.—(1) Subject to the provisions of this Act and within the limits of deviation defined on the deposited plans the Corporation in connection with the street works by this Act authorised or any of them and for the purposes thereof may make junctions and communications with any existing streets or roads which may be intersected or interfered with by or be contiguous to the said works or any of them and may for the purpose of any of the works by this Act authorised alter or interfere with any vault arch steps cellar area or railing under or adjoining any roadway or footway and may alter and divert either permanently or temporarily any bridges roads tramways wagon-ways streams pipes wires and apparatus and may make diversions widenings or alterations of the lines or levels of any existing streets or roads for the purpose of connecting the same with the said street works or any of them

or of crossing under or over the same or any of them or otherwise A.D. 1911.
 Provided always that the parties interested in any lands houses or
 other property injuriously affected by any such interference or
 alteration shall be entitled to full compensation for all damage
 sustained by them or any of them :

Provided also that nothing in this section shall extend to or
 authorise any interference with any works of any undertakers
 within the meaning of the Electric Lighting Acts 1882 to 1909 to
 which the provisions of section 15 of the Electric Lighting Act
 1882 apply except in accordance with and subject to the pro-
 visions of that section.

(2) The powers given by this section shall not be exercised
 in any street without the city except with the consent of the local
 or road authority having jurisdiction over such street or road.

32. Section 71 (For protection of works of Newcastle-upon-
 Tyne Electric Supply Company Limited) of the Act of 1904 shall
 extend and apply to and in relation to the street works by this Act
 authorised.

For protec-
 tion of works
 of Newcastle-
 upon-Tyne
 Electric Sup-
 ply Company
 Limited.

33. And whereas in order to avoid in the execution and
 maintenance of any works authorised by this Act injury to works
 or buildings within one hundred feet of any such works it may be
 necessary to underpin or otherwise strengthen the same Therefore the
 Corporation at their own costs and charges may and if required by
 the owners or lessees of any such work or building shall subject as
 herein-after provided underpin or otherwise strengthen the same and
 the following provisions shall have effect (that is to say) :—

Under-
 pinning.

1) At least ten days' notice shall unless in case of emergency
 be given to the owners lessees and occupiers or by the
 owners or lessees of the work or building so intended or
 so required to be underpinned or otherwise strengthened :

2) Each such notice if given by the Corporation shall be served
 in manner prescribed by section 19 of the Lands
 Clauses Consolidation Act 1845 and if given by the
 owners or lessees of the premises to be underpinned or
 strengthened shall be sent to the town clerk at the
 Town Hall :

A.D. 1911.

- (3) If any owner lessee or occupier of any such work or building or the Corporation as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference :
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such work or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said work or building :
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such work or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any work or building shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall prove inadequate for the support or protection of the work or building against further injury arising from the execution or use of the works of the Corporation then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the arbitrator the Corporation shall make compensation to the owners lessees and occupiers of such work or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve

the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act: A.D. 1911.

- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

34. Notwithstanding anything in this Act contained if any work authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraph lines of Postmaster-General.

35. For the protection of the Newcastle and Gateshead Water Company and the Newcastle-upon-Tyne and Gateshead Gas Company (in this section called "the two companies") the following provisions shall have effect unless otherwise agreed between the Corporation and the company affected (that is to say):— For protection of Newcastle and Gateshead Water Company and Newcastle-upon-Tyne and Gateshead Gas Company.

- (1) Notwithstanding anything shown on the deposited plans and sections the Corporation shall in executing Street Work No. 1 by this Act authorised make and maintain the same in the manner and according to the plan and section signed in reference thereto by William Jones Steele on behalf of the Corporation and by Thomas Waddom and George Smith on behalf of the two companies and in no other manner and under the superintendence and to the reasonable satisfaction of the engineers of the two companies:
- (2) In this section "apparatus" means and includes all or any mains pipes valves hydrants syphons plugs and other appliances belonging to the two companies respectively and "authorised work" means and includes any work authorised by this Act except tramways and works in connection therewith:
- (3) The Corporation shall from time to time repay to the two companies respectively any additional expense

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imposed upon them in executing any work of laying down repairing altering or removing any apparatus by reason of the existence of any tramway in any road or place where such apparatus shall have been laid before the construction of such tramway:

- (4) The Corporation may from time to time where and as far as it is necessary in the execution of any authorised work alter the position of any apparatus:
- (5) Before commencing to execute any authorised work in any road in which any apparatus is laid the Corporation shall whether they contemplate altering the position of any such apparatus or not give fourteen days' notice to the company to whom such apparatus belongs of their intention to execute such work and shall at the same time deliver a plan and section of the proposed work. If it should appear to such company that the execution of such work as proposed would endanger any such apparatus or interfere with the access thereto or impede the supply of water or gas such company may give notice to the Corporation to alter the position of such apparatus in such manner as may be considered necessary and any difference as to the necessity of any such alteration or the manner of carrying out the alteration shall be settled by arbitration in manner in this section provided for the settlement of differences between the Corporation and the two companies and all alterations to be made under this section shall be made by and at the expense of the Corporation with as little detriment and inconvenience to the company to whom such apparatus belongs or to the inhabitants of the district as the circumstances will admit and under the superintendence of the engineer of such company if he think fit to attend after receiving not less than three days' notice for that purpose which notice the Corporation are hereby required to give:
- (6) The Corporation in executing any authorised work shall not remove or displace any apparatus or do anything to endanger such apparatus or impede the passage of water or gas into or through any apparatus or interfere with the access thereto without the consent of the company to whom it belongs or in any other manner than such

company shall approve until good and sufficient apparatus and other works necessary or proper for continuing the supply of water or gas as sufficiently as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and ready for use and to the satisfaction of the engineer of such company or in case of disagreement between such engineer and the Corporation as an engineer appointed by the Board of Trade shall direct : A.D. 1911.

- (7) Wherever by virtue of this Act any public rights of way over any existing road or footway in which any apparatus of either of the two companies shall be placed shall be extinguished the Corporation shall if required by the company to whom such apparatus shall belong and so far as such apparatus shall be requisite for the supply of gas or water to property not acquired by the Corporation under the powers of this Act remove such apparatus to and relay the same in the road or footway (if any) intended to be substituted for such existing road or footway or in such other position as may be reasonably required by the company to whom such apparatus may belong or shall provide in such substituted road or other position similar apparatus equally suitable in lieu thereof under the superintendence and to the reasonable satisfaction of the engineer of the company to whom such apparatus may belong and in such a manner as not to cause without the consent in writing of the company (which consent shall not be unreasonably withheld) any interruption in the continuous supply of water or gas as the case may be through or by means of such apparatus :
- (8) Wherever the Corporation shall in reducing the width of the footway of any street or road under the powers of this Act add to the roadway any portion of any footway in which there shall be placed any apparatus belonging to either of the two companies the company to whom such apparatus shall belong may at the reasonable cost of the Corporation alter the position of such apparatus to such a depth below the surface of the roadway not exceeding two feet six inches measured from the

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upper side of the apparatus as the company may deem necessary :

- (9) The Corporation shall not lay down any such apparatus contrary to the provisions of any Act of Parliament relating to the two companies or either of them :
- (10) The Corporation in executing any authorised work shall make good all damage done by them to any apparatus belonging to either of the two companies and shall make full compensation to each of the two companies for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service pipes of any person supplied by such company with water or gas :
- (11) If by any authorised work the Corporation shall for a longer period than is reasonably necessary interrupt the supply of water or gas in or through any apparatus or interfere with the access thereto they shall be liable to a penalty not exceeding twenty pounds for every day upon which such supply shall be so interrupted or such access shall be so interfered with :
- (12) If either of the two companies shall desire to execute the works connected with any alteration of position removal or displacement of any apparatus under this section and shall give notice in writing thereof to the Corporation before they commence the works such company may themselves carry out the works and all reasonable expenses properly incurred by them in connection therewith shall be repaid to them by the Corporation and be recoverable summarily as a civil debt :
- (13) If any difference arise between the Corporation and either of the two companies with respect to any interference or control exercised or claimed to be exercised by them in relation to the execution of any authorised work by the Corporation or in relation to anything to be done or not to be done or any money to be paid under this section such difference shall be determined by arbitration under and according to the provisions of the Arbitration Act 1889, by an engineer to be appointed by the

Board of Trade on the application of either of the parties A.D. 1911.
in difference after notice thereof in writing to the other
of them.

PART V.

LANDS.

36. Subject to the provisions of this Act the Corporation may enter on take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act. Power to take lands.

37. The following sections of the following Acts (that is to say) :— Incorporation of sections of Acts of 1892 1899 1902 and 1904.

Of the Act of 1892—

- Section 109 (Correction of errors omissions &c.);
- Section 115 (Power to acquire additional lands by agreement);
- Section 116 (Consideration for such acquisition);
- Section 118 (Power to take easements &c. by agreement);
- Section 119 (Corporation may use their own lands for purposes of Act);
- Section 121 (Power to retain sell &c. lands) except the proviso; and
- Section 123 (As to consent of Local Government Board to sale &c. of lands):

Of the Act of 1899—

- Section 62 (Exemption of Government property):

Of the Act of 1902—

- Section 31 (Application of moneys from sale of lands); and
- Section 32 (Value of land appropriated to other than purposes for which it was acquired to be credited):

Of the Act of 1904—

- Section 79 (Power to stop up roads or footways); and
- Section 80 (Streets disused vested in Corporation):

so far as the same are applicable and not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the lands to be acquired and the works to be constructed under the powers of this Act.

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Limitation of
time for com-
pulsory pur-
chase of lands.

Costs of
arbitration in
certain cases.

38. The powers of the Corporation for the compulsory purchase of lands shall not be exercised after the expiration of five years from the passing of this Act.

39. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant:

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensa-
tion in case
of recently
altered
buildings.

40. In settling any question of disputed purchase money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the twenty-sixth day of October one thousand nine hundred and ten if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is

made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. A.D. 1911.

41.—(1) The Corporation may erect and maintain buildings upon such of the lands shown by red colour upon the plan signed by Norval Watson Helme the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which is deposited in the Private Bill Office of the House of Commons and another copy in the Parliament Office of the House of Lords) as belong to the Corporation and may enter into and carry into effect contracts and agreements with any company or person in relation to the erection and maintenance of such buildings.

Power to
erect and let
buildings.

(2) The Corporation may let either from year to year or for a less period or lease for a term at a rent not less than rack rent or sell exchange or otherwise dispose of any such buildings and may execute and do any deed act or thing requisite or proper for effectuating any such letting lease sale exchange or other disposition.

42. And whereas in the construction of the works by this Act authorised or otherwise in exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may
be required
to sell parts
only of
certain lands
and build-
ings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without

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material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be

severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1911.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART VI.

TOWN MOOR.

43. The enclosure planting and laying out by the Corporation as a park or recreation ground of the portion of the Castle Leazes shown on the Castle Leazes plan and thereon distinguished by red colour and containing three acres two roods and twenty perches is hereby sanctioned and confirmed and the Corporation shall plant lay out and at all times maintain the said lands as ornamental or recreation grounds and shall pay to the stewards' committee in respect of such enclosure the perpetual yearly rent or sum of

As to enclosure of portion of Castle Leazes.

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Enclosed
land freed
from herbage
right.

44. The lands shown upon the Castle Leazes plan and thereon coloured red as aforesaid are hereby freed and discharged from the herbage right or any other rights or benefits which the freemen and widows of freemen of the city are entitled to exercise over the remaining portion of the Town Moor and the said lands shall be held by the Corporation so freed and discharged for the purposes in this Act specified.

By-laws.

45. The powers of the Corporation to make by-laws as to parks as contained in section 14 (Corporation may make by-laws as to public parks &c.) of the Act of 1870 shall extend and apply to and in relation to the lands coloured red as aforesaid on the Castle Leazes plan and shall be exerciseable by the Corporation in respect of such lands.

Deposit of
Castle
Leazes plan.

46. One copy of the Castle Leazes plan shall be deposited with the town clerk at his office and the other copy thereof shall be deposited with the secretary to the stewards' committee at his office and the copy of the said plan deposited with the town clerk shall be open to the inspection of any freeman or ratepayer of the city at all reasonable times free of charge.

As to means
of access to
Nuns Moor.

47. The westernmost of the existing gates in the fence along the southern side of the Nuns Moor opposite to Saint Nicholas Cemetery shall be opened and kept as a means of entrance for the public to the Nuns Moor from the Nuns Moor Road and the Corporation shall maintain such gate and entrance.

By-laws as
to bicycles
&c. on Town
Moor.

48. The Corporation may make by-laws prohibiting or restricting the use of any footpaths on the Town Moor by persons riding bicycles tricycles or other similar vehicles Provided that such by-laws shall not prohibit the reasonable use of such footpaths by persons riding bicycles tricycles or other similar vehicles not being mechanically propelled vehicles between the hours of midnight and ten A.M. and shall not come into force until the same shall have been sanctioned by the Secretary of State for the Home Department.

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QUAYS.

49. Section 30 (Defining limits of existing quays) of the Act of 1904 shall be deemed to include in addition to the area therein specified the quays of the Corporation known as Ridley's Quay Dunn Street Quay Mushroom Quay St. Peter's Quay and St. Lawrence Quay and the Corporation shall have and may exercise upon and in relation to the said quays the powers which they now have or may exercise upon or in relation to the quays of the Corporation as defined by the Act of 1904 and the said quays shall for all purposes form part of the quays of the Corporation.

Inclusion of certain quays within quay limits.

50.—(1) Nothing contained in this Act or any of the former Acts or in any by-laws or regulations at any time made by the Corporation in respect of the quays of the Corporation or any powers conferred on the quay master of the Corporation by any of such Acts by-laws or regulations shall interfere with the powers of the harbour master of the Tyne Improvement Commissioners and such powers may be exercised over all vessels in the River Tyne in the same manner and to the same extent as if such Acts by-laws and regulations had not been passed or made.

For protection of Tyne Improvement Commissioners.

(2) The Corporation shall indemnify the Tyne Improvement Commissioners against the consequences of any act order or direction of the quay master of the Corporation whilst acting as a harbour master under this Act or any of the former Acts and of any other person acting under any by-laws or regulations made by the Corporation in respect of the quays of the Corporation.

PART VIII.

SANITARY.

51.—(1) No room shop or other part of a building within the city in which any food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place but no penalty shall be imposed for an offence against this sub-section if in the opinion of the court such use would not have caused risk of infection or contamination of food.

No place used for storage &c. of human food to be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a

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A.D. 1911. sleeping room in contravention of this section he shall be liable on summary conviction to a fine not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The Corporation or any of their officers shall have the like right of entry upon any such room shop or other part of a building as they would have had under section 102 of the Public Health Act 1875 if there had been a nuisance arising in respect of any business carried on therein.

For regu-
lating manu-
facture and
sale of ice-
creams &c.

52.—(1) As from the passing of this Act section 42 (For regulating manufacture and sale of ice-creams &c.) of the Act of 1899 shall be and the same is hereby repealed.

(2) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the city—

(A) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of ice-cream or any similar commodity does any act or thing likely to expose such ice-cream or similar commodity to infection or contamination or omits to take any proper precaution for the due protection of such ice-cream or similar commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence upon summary conviction therefor to a penalty not exceeding forty shillings.

(3) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or

materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed. A.D. 1911.

(4) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this sub-section shall be liable upon conviction to a penalty not exceeding forty shillings.

(5) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the ice-cream materials or commodities or food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable upon conviction to a penalty not exceeding forty shillings for each offence.

(6) The Corporation shall cause public notice to be given of the effect of the provisions of this section by advertisement in a local newspaper and by handbills and otherwise in such manner as they think sufficient and the provisions of this section shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

53. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the city and any person offending against this enactment or exposing or depositing for sale within the city a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Prohibition
of blowing
or inflating
carcases.

54.—(1) If the medical officer has reasonable cause to suppose that any house in the city is infested with vermin he or any inspector of nuisances may enter such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

Houses in-
fested with
vermin to be
cleansed.

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(2) Where on the certificate of the medical officer it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the owner or occupier of such house requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and if so required in the notice to remove the wall-paper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a fine not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as herein-after provided) be recoverable summarily as a civil debt from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Regulation
dustbins.

55. The Corporation may by notice in writing require the owner or occupier of any house to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall be liable to a penalty not

exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not authorise the Corporation to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition. A.D. 1911.

56. From and after the passing of this Act section 92 (Owners of existing houses to provide a privy and ashpit for the same) of the Act of 1846 shall be and the same is hereby repealed. Repeal of section 92 of Act of 1846.

57. The Corporation may appoint and pay as many inspectors of nuisances as may in their judgment be necessary for the proper execution of the provisions of the Public Health Acts and of this Act and the former Acts. Appointment of inspectors of nuisances.

58. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

59.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners. Corporation may order houses to be drained by a combined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation except with the consent of the owner or owners of the said house.

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PART IX.

INFECTIOUS DISEASE.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

60.—(1) The occupier of any building in the city which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish for the purpose of enabling measures to be taken to prevent the spread of the disease information as to the names and addresses so far as within his knowledge of the persons who shall have been in such building prior to or at the time of the occurrence of such illness.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Provisions
for notifica-
tion of
tuberculosis
of lung.

61.—(1) (A) Every registered medical practitioner attending on or called in to visit any person within the city shall forthwith on becoming aware that such person is suffering from tuberculosis of the lung send to the medical officer a certificate on a form to be supplied to him gratuitously by the Corporation stating the name age sex and place of residence and employment or occupation (so far as can be reasonably ascertained) of the person so suffering and whether the case occurs in his private practice or in his practice as medical officer of any hospital public body friendly or other society or institution.

(B) Any such medical practitioner who fails to give such certificate shall be liable on summary conviction to a fine not exceeding forty shillings.

(C) The Corporation shall pay to every such medical practitioner for each certificate duly sent by him in accordance with this section a fee of not exceeding two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice as medical officer of any hospital or public body or friendly or other society or institution.

(D) A payment made to any medical practitioner in pursuance of this section shall not disqualify that practitioner from serving as

a member of the Corporation or as a guardian of a union situate wholly or partly in the city or in any municipal or parochial office. A.D. 1911.

(2) (A) Where the medical officer certifies that the cleansing and disinfecting of any premises (including in that term any tent shed or similar structure used for human habitation but not including any ship vessel or boat) would tend to prevent or check tuberculosis of the lung the town clerk shall give notice in writing to the owner or occupier of such premises that the same or any part thereof will be cleansed and disinfected by the Corporation at the cost of the Corporation unless the owner or occupier of such premises informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the premises or the part thereof to the satisfaction of the medical officer within the time to be fixed by the notice. If within twenty-four hours from the receipt of such notice the owner or occupier of such premises has not informed the Corporation as aforesaid or if having so informed the Corporation he fails to have the premises or the part thereof disinfected as aforesaid within the time fixed by the notice the premises or the part thereof shall be cleansed and disinfected by the officers of and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such premises or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers of and at the cost of the Corporation under the superintendence of the medical officer.

(B) For the purpose of carrying into effect the provisions of this sub-section the Corporation may by any officer authorised in that behalf in writing under the hand of the town clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(C) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this sub-section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) (A) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung to cause such articles books things bedding or clothing

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A.D. 1911. to be delivered over to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable on summary conviction to a penalty not exceeding five pounds.

(B) Such articles books things bedding and clothing shall be disinfected by the Corporation and brought back and delivered to the owner free of charge.

(4) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of sub-sections (2) and (3) of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

(5) No provisions contained in any general or local Act of Parliament relating to infectious disease shall apply to tuberculosis of the lung or proceedings relating thereto under this section.

(6) The Corporation shall give notice of the provisions of this section by registered post to every medical practitioner in the city and any other registered medical practitioner known to be in practice in the city and this section shall come into operation at such time not being less than one month after the first publication of an advertisement prescribed by the section of this part of this Act the marginal note of which is "Public notice to be given of provisions of this part of Act" as the Corporation may fix.

(7) The provisions of this section shall cease to be in force within the city at the expiration of nine years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875.

Public notice
to be given
of provis-
ions of this
part of Act.

62.—(1) Public notice of the provisions of this part of this Act shall be given as soon as may be after the passing of this Act by advertisement in two newspapers published or circulating in the city and by a notice affixed outside the Town Hall.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART X.

A.D. 1911.

COMMON LODGING-HOUSES.

63.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year.

Registration
of common
lodging-
houses.

(2) Any person aggrieved by a refusal to renew the registration of a common lodging-house may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he gives twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they think fit and to award costs.

(3) Every person who after the thirty-first day of December one thousand nine hundred and eleven shall keep a common lodging-house without the registration of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) Notice of the provisions of this section shall be served upon the keeper of every common lodging-house within the city either personally or by leaving the same at or sending the same to the common lodging-house.

(5) A copy of a notice endorsed with a certificate purporting to be signed by the town clerk that such notice has been served in accordance with the requirements of the last preceding sub-section shall be sufficient evidence that the provisions of such sub-section have been complied with.

64.—(1) The Corporation may at their discretion refuse to register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position.

Corporation
may refuse to
register
lodging-
house
keepers.

(2) The registration of a person as a common lodging-house keeper shall remain in force only for such time not exceeding one year as the Corporation may fix but may be from time to time renewed by the Corporation.

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PART XI.

SUPERANNUATION.

Repeal of
Part VIII. of
Act of 1904.

65. This part of this Act shall come into operation on the first day of April one thousand nine hundred and twelve (herein-after referred to as "the appointed day") and Part VIII. of the Act of 1904 shall as from the appointed day be repealed but without prejudice to the continuance of any allowance of which any person shall then be in receipt or to which he shall then have become entitled.

Persons
entitled to
benefits and
conditions of
admission.

66.—(1) Every officer or servant who immediately before the appointed day was a contributor to the superannuation fund of the Corporation shall subject to the provisions of this part of this Act contribute thereto and be entitled to benefit therefrom in accordance with the provisions of this part of this Act.

(2) Any of the following persons shall upon making such payment as is by this section provided in addition to the annual contributions to be made by him be entitled to benefit from the superannuation fund as if he had been in the service of the Corporation for the aggregate period during which he shall have been in the service of any of the authorities or bodies herein-after specified or of the trustees herein-after mentioned and of the Corporation (that is to say):—

- (A) Any person who formerly was an officer or servant of any of the following authorities and bodies namely the school board of Newcastle-upon-Tyne the school board of Benwell and Fenham in the county of Northumberland the school board of Long Benton in the county of Northumberland the Northumberland County Council as the local education authority of that county the urban district council of Benwell and Fenham in the county of Northumberland the urban district council of Walker in the county of Northumberland and the managers or trustees of any public elementary school or of any school for higher education in receipt of Government grants and who has subsequently become an officer or servant of the Corporation in consequence of the transfer to the Corporation of the powers and duties within the city of the said authorities or bodies or any of them and who at the

appointed day shall be an officer or servant of the Corporation; A.D. 1911.

- (B) Any person who previous to the transfer to the Corporation of the powers and duties within the city of the said authorities or bodies or any of them passed out of the permanent and exclusive service of the aforesaid authorities or bodies and thereupon became an officer or servant of the Corporation and who at the appointed day shall be an officer or servant of the Corporation;
- (c) Any person in the employ of the Corporation in their capacity as trustees of any hospital;
- (D) Any person permanently and exclusively employed by the Corporation as local education authority or in any public elementary school in the city (whether provided by the Corporation or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Corporation as local education authority for the purpose of Part II. of the Education Act 1902;
- (E) Any person permanently and exclusively employed in or in connection with Rutherford College.

(3) No person who immediately before the appointed day was an officer or servant shall be entitled to benefit from the superannuation fund unless within six months from the date of the service upon him of a certificate by the treasurer of the amount payable by him he shall have paid to the superannuation fund such a sum as with the amount (if any) already contributed by him to such fund shall be equal to the amount which he would have contributed if he had become and been a member of such fund on and from the twentieth day of March one thousand nine hundred and five or (if he had become an officer or servant after that date) from the date of so becoming an officer or servant and contributed thereto at the rate specified in the Act of 1904 appropriate to the period of his aforesaid aggregate service together with compound interest at the rate of three and a half per centum per annum upon the contributions which he would have so made. Provided that any such payment may with the sanction of the Corporation be made by instalments spread over such a period in excess of the said period of six months as the Corporation determine.

A.D. 1911.

As to future
officers and
servants.

67. Every person who on or after the appointed day becomes an officer or servant as herein-after defined shall subject to the provisions of this part of this Act contribute to the superannuation fund and be entitled to benefit therefrom.

Title of
officers and
servants to
superannua-
tion allow-
ances.

68.—(1) Subject to the provisions of this part of this Act any officer or servant being a contributor to the superannuation fund who shall become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body or who shall have attained the age of sixty years and have completed an aggregate service of forty years or who shall have attained the full age of sixty-five years shall if he has served not less than ten years be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale laid down in this Act.

(2) Where an officer or servant has attained the age of sixty-five years and the Corporation is of opinion that it would be expedient in the interests of the public service that he should cease to hold his office or employment it shall be competent for the Corporation to require him to retire upon payment to him of the superannuation allowance to which he may be entitled under this Act.

Scale of
superannua-
tion allow-
ances.

69. The scale for superannuation allowances shall be as follows (that is to say):—

An officer or servant who has served for ten years shall be entitled to an annual allowance equal to ten-sixtieths of the average amount of his salary or wages during the five years ending on the day which immediately precedes the day on which he ceases to hold his office or employment;

With an addition of one-sixtieth of such average amount for every additional completed year of service until the completion of a period of service of forty years when a maximum allowance of forty-sixtieths shall be granted.

Case of
subsequent
appointment.

70. Where a person in receipt of a superannuation allowance under this Act is appointed to any office or employment by the Corporation or by any authority where his salary or wages shall be paid directly or indirectly out of any rate or rates or out of any public moneys such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages thereof are equal to or in excess of the amount of such allowance

but if they are not then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency. A.D. 1911.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original superannuation allowance.

71. An officer or servant who has not become entitled to a superannuation allowance and who loses his office or employment by reason of a reduction of staff or otherwise ceases to hold his office or employment by reason of bodily injury not occasioned by his own default or of any other cause whatever other than his own misconduct or voluntary resignation shall be entitled to receive out of the superannuation fund a sum equal to the amount of all his contributions to such fund but if subsequently to making a claim and receiving payment under this section he obtains a fresh office or employment under the Corporation he shall not be entitled to reckon his service before obtaining such fresh office or employment towards a superannuation allowance under this Act unless upon obtaining such fresh office or employment he pays the amount so received to the fund. Return of contributions and power to grant gratuities in certain cases.

In any such case of loss of office or employment as aforesaid the Corporation may also grant to the officer or servant a gratuity payable out of the superannuation fund not exceeding twice the amount of his salary or wages during the year ending on the day which immediately precedes the day on which he ceases to hold his office or employment.

72. In the case of any officer or servant contributing to the superannuation fund who shall die before becoming entitled to or receiving a superannuation allowance the Corporation shall pay to the widow or family of such officer or servant one-half of the amount contributed by such officer or servant to the superannuation fund and the Corporation may in addition if they think fit grant out of the superannuation fund to the widow or family of any such officer or servant a gratuity not exceeding one-half of the amount contributed by such officer or servant to the said fund. Payments in case of death of officers or servants before superannuation.

73. Subject to the provisions of this part of this Act every officer or servant shall as from the appointed day contribute annually to the superannuation fund a percentage amount of his salary or wages according to the following scale the amount of such percent- Obligation of officers and servants to contribute

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A.D. 1911. age to be from time to time deducted from the salary or wages
and scale of payable to him (that is to say) :—
contri-
butions.

In the case of an officer or servant with less than five years' service at the date when he first became a contributor of the fund or appointed after the passing of this Act not exceeding four per centum per annum upon his salary and wages ;

In the case of an officer or servant with five or more than five and less than fifteen years' service at the date when he first became a contributor of the fund not exceeding five per centum per annum of the salary and wages of such officer or servant ;

In the case of an officer or servant with fifteen or more than fifteen and less than thirty years' service at the date when he first became a contributor of the fund not exceeding six per centum per annum of the salary and wages of such officer or servant ;

In the case of an officer or servant with thirty or more than thirty years' service at the date when he first became a contributor of the fund not exceeding eight per centum per annum of the salary and wages of such officer or servant.

Payments
into fund.

74.—(1) The Corporation shall carry to the credit of the superannuation fund the following sums annually :—

- (A) The amounts deducted under the provisions of this Act from the salaries and wages of officers and servants contributing to the superannuation fund ;
- (B) A sum equal in amount to the sum which during the year has been contributed to the superannuation fund by the officers or servants (herein-after referred to as " the equivalent contribution ") ;
- (C) All dividends and interest arising out of the investment or use of the superannuation fund or any part thereof ;
- (D) An annual sum (herein-after referred to as " the additional annual contribution ") the amount of which shall be determined as herein-after provided to be paid by the Corporation for the purpose of securing the solvency at any future time of the superannuation fund.

(2) The equivalent contribution and the additional annual contribution shall be made out of the same rates and revenues as

those upon which the salaries or wages in respect of which such contributions are made are charged. A.D. 1911.

75. On or before the appointed day and thereafter once at least in every five years the condition of the superannuation fund shall be submitted by the Corporation to an actuary being a fellow of the Institute of Actuaries or the Faculty of Actuaries in Scotland who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify— Actuarial investigation.

- (i) the rates of contribution of officers and servants;
- (ii) whether any additional annual contribution is necessary;
- (iii) what proportion in his opinion the additional annual contribution should bear to the total salaries and wages of the officers and servants contributing to the superannuation fund;

so that the superannuation fund shall be solvent (having regard to the existing and prospective liabilities) and for the next quinquennial period the rates of contributions of officers and servants and the proportion of the additional annual contribution (if any) shall be as so certified and shall be paid to the superannuation fund accordingly. Provided that the actuary shall make such certificate as will cast upon the local rates of the city as nearly as may be an even annual charge in respect of the additional annual contribution. Provided also that the rates of contribution of officers and servants shall not be less than the maximum rates specified in this part of this Act so long as any additional annual contribution is payable by the Corporation and shall not at any time exceed such maximum.

A copy of the valuation and certificate of the actuary shall be forwarded to the Local Government Board.

76. The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of the superannuation fund and not for the time being required for payments to be made under this part of this Act subject to the following conditions:— Use of moneys forming part of superannuation fund for purposes of borrowing powers.

- (A) The moneys so used shall be repaid to the superannuation fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable;

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- (B) Interest shall be paid to the superannuation fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power;
- (c) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

Notice of provisions of this part of Act to officers and servants.

77.—(1) As soon as may be after the passing of this Act a copy of the provisions of this part of this Act shall be sent or delivered to each officer or servant to whom the provisions of this part of this Act apply.

(2) A copy of the provisions of this part of this Act shall as soon as may be after his appointment be sent or delivered to every officer or servant who may be appointed subsequently to the passing of this Act.

(3) Any officer or servant at any time within three months after a copy of the provisions of this part of this Act shall have been sent or delivered to him as herein-before provided may give notice in writing to the Corporation of his intention not to avail himself of those provisions and in that event it shall not be obligatory on him to make or to continue to make any contributions or submit to any deduction from his salary or wages under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Act and any such officer or servant being at the passing of this Act a contributor to the fund shall be entitled to be repaid the amount which he shall have paid in contributions to the superannuation fund up to the date of such notice.

Charging certain liabilities upon rates instead of fund.

78. Any superannuation allowance now being paid or hereinafter to be paid to any person who at the date of the passing of the Act of 1904 had attained the age of sixty years shall as from the appointed day cease to be payable out of or to be

charged upon the superannuation fund and shall be paid by the Corporation to such person out of the rate or revenue from which his salary or wages was paid previously to the retirement of such person from the service of the Corporation but this section shall not affect the liability of the Corporation or of any such person who shall not at the date of the passing of this Act have retired to contribute to the fund until retirement upon the terms and conditions of this part of this Act. A.D. 1911.

79.—(A) In the application of this part of this Act to any officer or servant to whom the Elementary School Teachers (Superannuation) Act 1898 (in this section referred to as “the Act of 1898”) applies (such officer or servant being in this section referred to as “a teacher”) the amount of the superannuation allowance to be made to a teacher upon retirement under the provisions of this part of this Act shall be complementary to the amount of the deferred annuity to which such teacher is entitled and of the superannuation allowance which may be granted to such teacher under the Act of 1898 and shall be calculated upon the amount of his salary or wages after deducting such part or proportion or fixed sum as the Corporation shall determine to be sufficient to make the superannuation allowance in respect of the amount of the difference under the provisions of this part of this Act and the total amount of annuity and allowance received by him under the Act of 1898 together equal as nearly as may be to the superannuation allowance which he would have been entitled to receive upon his retirement under this part of this Act if the Act of 1898 did not apply to him and for that purpose the contributions to be made by such teacher under this part of this Act shall be made in respect only of the amount of the before-mentioned difference (if any). As to teachers.

(B) For the purpose of giving effect to the provisions of this section the Corporation shall by resolution in respect of each quinquennial period determine the part proportion or fixed sum to be deducted as aforesaid from the salary or wages of a teacher and the balance shall be the amount upon which the contribution by and benefit to such teacher is to be calculated under this part of this Act.

(C) If at any time hereafter by reason of the passing of any public Act of Parliament the annual payments to be made to a teacher on the expiration of his certificate by way of deferred

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A.D. 1911. annuity or superannuation allowance or pension or other similar payment from any source other than the superannuation fund are materially increased the Corporation shall by an amending resolution make such provision as shall be necessary to meet the altered circumstances Any such resolution shall reduce proportionately the part proportion or amount of the salary (if any) in respect of which contributions are to be made by the Corporation and such teacher respectively and the superannuation allowance to be paid to such teacher under this part of this Act.

(D) If at any time during his service a teacher is placed in such a position that he may in future become entitled to a superannuation allowance or pension or other similar payment equal to or in excess of that to which in the absence of such allowance pension or other payment he would in similar circumstances have become entitled from the fund he shall cease to be a member of the superannuation fund and to be liable to contribute thereto or to benefit therefrom and the Corporation shall cease to be liable to make any equivalent contribution in respect of such teacher.

(E) A teacher to whom the provisions of this section apply shall for the purpose only of ascertaining the percentage amount of his contribution to the superannuation fund be deemed to have become a contributor of the fund at the date when he first becomes liable to a deduction from his salary or wages in respect thereof.

(F) No part of any benefit or superannuation allowance received by any teacher from the superannuation fund shall be deemed to be paid out of or received from public money within the meaning of the Act of 1898 or any rules made thereunder or otherwise.

Investment
of surplus
income.

80. At the end of each financial year the surplus of the annual income of the superannuation fund above the expenditure thereout shall be invested in statutory securities or be used in the manner herein-before provided and the income thereof paid into that fund.

Interpreta-
tion of
"officer or
servant."

81. In this part of this Act the expression "officer or servant" shall mean an officer or servant in the permanent and exclusive service of the Corporation and in the receipt of a salary or wages and shall for the purposes of this part of this Act be deemed to include (a) the several persons mentioned in sub-

section (2) of the section of this Act of which the marginal note is "Persons entitled to benefits and conditions of admission" A.D. 1911.
 (b) the medical officer of health (c) the clerk to the city justices and (d) the officers and servants in the service of the City justices but this part of this Act shall not apply to an officer or servant who shall be entitled to superannuation under the Police Act 1890 or Part XII. of the Act of 1892.

82. The expression "salary or wages" used in this part of this Act includes all fees poundage and other payments made to any officer or servant as such for his own use also the money value of any apartments rations or other allowances in kind appertaining to his office or employment but shall not include any payment made to a teacher in respect of any services (not being services comprised in his ordinary duties) performed by him in connection with any evening classes held under the authority of the Corporation as local education authority. Defining
"salary or
wages."

83. The Corporation shall in respect of the Superannuation fund be registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to sub-section (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this part of this Act shall apply as if (a) the Corporation were a society to which that Act applies and were the trustees of such society (b) as if the provisions of this part of this Act were the rules of such society (c) as if the superannuation fund were the funds of such society and (d) as if the contributors to the fund were the members of such society : Application
of provisions
of Friendly
Societies Act
1896.

Provided that the powers of sections 70 71 73 78 and 79 of the said Act shall not be exercised without the consent of the Corporation.

PART XII.

FINANCE.

84. The Corporation may from time to time in addition to any moneys they are now authorised to borrow or which they may be authorised to borrow under the provisions of the Public Health Acts or any public general Act borrow at interest on the following securities and for the following purposes such moneys as they Power to
borrow

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A.D. 1911. from time to time think requisite for those respective purposes not exceeding the following sums (that is to say):—

On the security of the city fund and city rate the general rate the improvement rate the district fund and general district rate and the tramway revenue and the tramway rate—

- (A) For paying the costs charges and expenses of and in relation to this Act as herein-after defined the sum requisite for the purpose;

On the security of the tramway revenue and (collaterally) the tramway rate and city fund and city rate—

- (B) For street works (including the purchase of the lands required therefor) twenty thousand seven hundred pounds;
- (C) For the construction of the tramways sixty-one thousand pounds;
- (D) For equipment of the tramways thirteen thousand four hundred and fifty-one pounds;
- (E) For and in relation to tramway purposes including motor omnibuses such sums as the Board of Trade may from time to time sanction;
- On the security of the improvement rate—
- (F) For any purposes of this Act not being tramway purposes such further sums as the Local Government Board may from time to time sanction:

And in calculating the sums which the Corporation may borrow under the provisions of any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and reborrowing under and for the purposes of this Act shall not be restricted by any of the provisions of the Public Health Acts.

As regards any rates which may be laid to make good any loss which may be incurred in respect of any tramway owned leased or worked by the Corporation under the powers of this Act outside the city the owners of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance shall be

assessed for such rates in respect of the same in the proportion of one-fourth part only of the net annual value thereof and in order to give effect to this section the Corporation shall keep separate accounts of receipts and expenditure in connection with such tramways and such accounts shall at all reasonable times be open to the inspection of the railway company occupying any such land and their officers. A.D. 1911.

85. The following sections of the Public Health Act 1875 shall (subject to the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes") extend and apply mutatis mutandis to and in relation to all mortgages made under the powers of this Act (that is to say) :— Provision as to mortgages.

Section 236 (Form of mortgage) ;
 Section 237 (Register of mortgages) ; and
 Section 238 (Transfer of mortgages).

86. The following sections of the following Acts (that is to say) :— Incorporation of certain sections of Acts of 1892 1899 and 1902.

Of the Act of 1892—

Section 145 (Corporation not to regard trusts) :

Of the Act of 1899—

Section 79 (Sinking fund for moneys borrowed and hereafter to be borrowed) ;

Section 80 (Provision as to increase and reduction of payments to sinking funds) ;

Section 82 (Power to borrow under Local Loans Act 1875) ;

Section 83 (Power to re-borrow) ;

Section 85 (Application of borrowed moneys) ;

Section 86 (Appointment of receiver) ;

Section 87 (Saving of charges) ; and

Section 90 (Protection of lenders from inquiry) :

Of the Act of 1902—

Section 44 (Audit of accounts) :

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the moneys borrowed by the Corporation under the powers of this Act and to the repayment thereof.

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Periods for
repayment of
borrowed
moneys.

87. The prescribed period mentioned in sections 79 80 and 82 of the Act of 1899 incorporated with this Act shall be as regards all moneys borrowed under the powers of this Act or under the powers of the Local Loans Act 1875 for the purposes respectively mentioned in the following sub-sections of the section of this Act the marginal note whereof is "Power to borrow" the following respective periods (that is to say) :—

For the purposes in sub-section (A) five years from the passing of this Act ;

For the purposes in sub-section (B) forty years ;

For the purposes in sub-section (C) thirty years ;

For the purposes in sub-section (D) twenty years ;

For the purposes in sub-section (E) such period as the Board of Trade may sanction ;

For the purposes in sub-section (F) such period as the Local Government Board may sanction.

Expenses of
execution
of Act.

88. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (including all costs charges and expenses of and in relation to the borrowing of any moneys under the powers of this Act and all interest on and all instalments appropriations and sinking fund payments in respect of such borrowed moneys) other than those expenses properly chargeable to capital and payable out of borrowed moneys shall be paid as follows :—

So far as relates to street works and tramways (including motor omnibuses)—

Out of the tramway revenue and if and so far as that revenue proves insufficient for the purpose out of the tramway rate and subject thereto out of the city fund and city rate ;

So far as relates to sanitary provisions infectious disease common lodging-houses and expenses not otherwise provided for—

Out of the improvement rate.

Incorporation of
certain provisions of
Act of 1899.

89. The following sections of the Act of 1899 (that is to say) :—

Section 93 (As to deficiency in tramway revenue) ; and

Section 94 (Annual estimate for tramways) ;

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the tramways.

90. The provisions of section 45 (Inquiries by and expenses of Local Government Board) of the Act of 1902 shall be incorporated with and form part of this Act.

A.D. 1911.
 —
 Incorporation of
 section 45 of
 Act of 1902.
 Tramway
 undertaking
 accounts and
 revenue.

91.—(1) As from the commencement of the financial year next after the passing of this Act the Corporation shall keep accounts in respect of their tramway undertaking separate from all their other accounts (distinguishing therein capital from revenue) and shall apply the revenue of such undertaking as follows (that is to say):—

(Firstly) In payment of the costs charges and expenses of and incidental to the collecting and recovering of the revenue of the tramway undertaking;

(Secondly) In payment of the working and establishment expenses and costs of management and maintenance of the tramway undertaking (including the maintenance of so much of the roads in which the tramways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870);

(Thirdly) In providing the moneys required to pay the interest on moneys borrowed by the Corporation for the purposes of the tramway undertaking;

(Fourthly) In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the tramway undertaking;

(Fifthly) In making good to the city fund any deficiency in the revenues of the Corporation in respect of the tramway undertaking which may at any time hereafter have been provided out of the city fund or city rate;

Sixthly) In extending and improving the tramway undertaking;

(Seventhly) In providing a reserve fund for the tramway undertaking if the Corporation think fit by setting aside such sum as they shall think reasonable and investing the same together with the sum herein-after in this section directed to be transferred to the said fund in statutory securities or in redeemable securities of the Corporation and accumulating the same at compound interest until the fund so formed shall

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amount to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expended for the time being by the Corporation upon the tramway undertaking. Such fund shall be applicable as the Corporation think fit in meeting expenses caused in connection with the tramway undertaking by accidents and other contingencies or to answer any deficiency at any time happening in the income of the Corporation from the tramway undertaking or to meet any extraordinary claim demand or expenditure in respect of the tramway undertaking or to the cost of renewing any part of the tramway undertaking and so that if the fund shall at any time be reduced it may thereafter be again restored to such maximum amount as the Corporation may prescribe but not exceeding the limit herein-before prescribed and so from time to time as often as such reduction shall happen. Provided that the Corporation may resort to the said reserve fund for the above purposes notwithstanding that the same may not at the time be of the prescribed maximum amount:

And the Corporation shall carry to the city fund so much of the balance remaining in any year of the revenue of the tramway undertaking (including interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the tramway undertaking and paying the current expenses connected therewith.

(2) Any sum standing to the credit of any tramway reserve fund formed prior to the passing of this Act shall be transferred to the reserve fund by this section authorised.

(3) Any deficiency in the tramway revenue shall in each year be made good out of the tramway rate and subject thereto out of the city fund or city rate.

(4) As from the passing of this Act section 92 (Application of tramway revenue) of the Act of 1899 shall be and the same is hereby repealed.

Power to use
one form of
mortgage for
all purposes.

92.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Third Schedule to this Act or to the like effect. A.D. 1911.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation whether so chargeable or not under the original borrowing powers.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the treasurer a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest

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A.D. 1911. — therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the treasurer a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrowing.

93.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed by which such charge is effected to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein. A.D. 1911.

(2) The Corporation when exercising the powers conferred on them by this section shall—

- (A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;
- (B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;
- (C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

94.—(1) As from the passing of this Act section 96 (Annual return to Local Government Board with respect to sinking funds) of the Act of 1899 shall be and the same is hereby repealed.

Annual
return to
Local
Government
Board as to
sinking fund.

(2) The town clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is

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A.D. 1911. required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(3) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Creation of
Corporation
stock.

95.—(1) Notwithstanding anything contained in section 4 (1) of the Loans Act of 1882 the Corporation may exercise their

statutory borrowing powers by the creation under the powers of that Act of a new class of stock redeemable at their option at one and the same period not exceeding sixty years from the first creation of such stock and bearing such rate of dividend as the Corporation shall determine : A.D. 1911.

Provided that all such stock shall—

- (A) be created on and subject to such terms and conditions as that the same shall form one and the same class of stock bearing one and the same rate of dividend ; and
- (B) be charged in the same manner as and shall rank *pari passu* with all Corporation stock created under the Loans Act of 1882 and the Act of 1892.

(2) A separate loans fund to bear the name given to it by the first resolution creating stock under this section shall be established and formed in respect of stock which may be created and issued by the Corporation by virtue of this section and all the provisions of the Loans Act of 1882 the Act of 1892 and the Act of 1899 which are applicable to the Newcastle-upon-Tyne Corporation Consolidated Loans Fund (Number 2) shall *mutatis mutandis* apply to the loans fund so to be established and formed.

PART XIII.

MISCELLANEOUS.

96. From and after the passing of this Act the mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne shall be one body politic and corporate by the name and style of the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne and as if they had been incorporated by the name of the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne. Alteration of style of Corporation.

All provisions contained or to be contained in any Act of Parliament or in any document deed or contract relating to the said mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne however described shall henceforth be taken to apply and shall apply to the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne in all respects as if such Act deed document or contract referred to had named the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne.

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Power to
provide and
run motor
omnibuses.

97.—(1) The Corporation may provide work and use (but shall not manufacture) motor omnibuses and may run the same within the city and outside the city between the point where the boundary of the city crosses the road leading through Westerhope to North Walbottle and North Walbottle and may take demand and recover such reasonable fares and charges for the conveyance of passengers therein as may be approved by the Board of Trade and such omnibuses shall for all purposes form part of the tramway undertaking of the Corporation.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of such motor omnibuses.

(3) The Corporation may make by-laws for regulating the travelling and for the prevention of nuisances in their motor omnibuses. Provided that any such by-law shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of by-laws.

(4) Every motor omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Corporation shall subject to the provisions and conditions of the Conveyance of Mails Act 1893 perform in respect of the motor omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the said Act in the case of a tramway as defined by that Act and authorised as in that Act stated.

(6) In this section the expression "motor omnibus" means any stage carriage moved by mechanical power contained in or carried along with such carriage.

Remunera-
tion of
coroner.

98. Notwithstanding anything in the Municipal Corporations Act 1882 the remuneration of the coroner for the city may if the Corporation so resolve be by way of salary and not of fees and in the event of the Corporation so resolving the coroner shall receive out of the city fund such salary as may be from time to time determined by the Corporation and so long as he is paid by

salary he shall not be entitled to any fees or other allowance or payment in respect of the performance of his duties as coroner. A.D. 1911.

This section shall not apply to the existing coroner save with his written consent.

99. Those portions of sections 77 78 and 79 of the Act of 1837 which relate to hackney coaches are hereby repealed. Repeal of certain provisions as to hackney coaches of Act of 1837.

100. The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage plying for hire within the city to be tested and inspected before being first used and at such reasonable intervals of time as the Corporation may require and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable upon conviction to a penalty not exceeding forty shillings. Power to inspect and certify taximeters.

101.—(1) Subject to the provisions of this section the Corporation may use for the purposes of the Corporation tramways electrical energy generated at and transmitted from the existing power station of the Corporation or any other power station for the time being belonging to the Corporation the use of which is authorised by this or any other Act relating to the Corporation and the Corporation may for those purposes open and break up streets and roads and lay electric lines and the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to the opening and breaking up of streets and roads by the Corporation under the powers of this section and shall be incorporated with and form part of this section. Use of electrical energy by Corporation and modification of existing agreements.

(2) Nothing contained in an agreement dated the tenth day of March one thousand nine hundred and two and made between the Corporation of the one part and the urban district council of Walker of the other part and scheduled to and confirmed by the Act of 1902 or in an agreement dated the twenty-seventh day of March one thousand nine hundred and three and scheduled to and confirmed by the Newcastle-upon-Tyne Electric Supply Company's Act 1903 and made between the urban district council of Walker of the one part and the Newcastle-upon-Tyne Electric Supply

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A.D. 1911. — Company Limited (herein-after called "the supply company") of the other part or in any other agreement to the contrary shall be deemed to prevent the use by the Corporation for the purposes of their tramways for the time being in that portion of the city which was formerly the urban district of Walker of any electrical energy generated by them and so much of any such agreement as either directly or indirectly imposes any obligations upon the Corporation to take from the supply company and pay for electrical energy used or to be used in connection with such last-mentioned tramways shall cease to be operative.

(3) As consideration for the provisions of sub-section (2) hereof the following provisions shall apply :—

- (i) The Corporation shall on the passing of this Act pay to the supply company the sum of twelve thousand two hundred and fifty pounds ;
- (ii) The Corporation shall take from the supply company and the supply company shall supply to the Corporation all electrical energy at any time required by the Corporation for any purposes outside the existing city boundary except the existing tramways in the urban district of Gosforth ;
- (iii) The energy shall be metered high tension and the price to be paid therefor shall be one hundred pounds per annum per point of supply together with .55d. (fifty-five one-hundredths of a penny) per unit measured on the three-phase side ;
- (iv) The supply company shall at their own cost provide and lay the necessary high tension cables between the nearest high tension cables from which any supply is to be taken and the sub-station or sub-stations to be provided by the Corporation provided the distance does not exceed one mile in length by the route along which the cable is laid otherwise the Corporation shall provide and lay such cables at their own cost and the supply company shall at their own cost supply any necessary high tension switchgear at the junction point between the Corporation's system and the supply company's system ;
- (v) Notwithstanding anything in this section contained the Corporation shall not take from the supply company nor shall the supply company supply to the Corporation any

electrical energy required for the purposes of the tram-ways of the Corporation in the urban district of Newburn if and so long as the Newcastle and District Electric Lighting Company Limited are able and willing to and do in fact with the consent of the supply company supply the energy so required ;

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- (vi) (a) The supply company shall for the purposes of carrying lighting and power wires have the same right as is conferred upon the Postmaster-General by the section of this Act of which the marginal note is " Use of tramway posts by Postmaster-General " of using any poles erected by the Corporation outside the city so long as such use by the supply company does not interfere with the tramway service but paragraph (h) of sub-section (1) of the said section shall not apply to the supply company ;
- (b) At any time after the passing of this Act and notwithstanding that notice to terminate the provisions of this sub-section may have been given the Corporation and the supply company may enter into and carry into effect agreements for the use by the supply company for the purpose of carrying lighting and power wires of any poles erected by the Corporation for such periods and at such rents as may be agreed upon ;
- (c) The proviso to sub-section (2) and sub-section (3) of the section of this Act the marginal note of which is " Use of tramway posts by Postmaster-General " shall apply in relation to any use by the supply company under this sub-section or any agreement made thereunder of poles erected by the Corporation ;
- (vii) The Corporation shall take sufficient steps for correcting the present voltage drop between Newcastle and Scotswood ;
- (viii) The provisions of this sub-section shall be terminable by the Corporation or the supply company at or after the expiration of the period of ten years from the date of the passing of this Act upon giving five years' previous notice in writing to the other but any supply being given at the date of the expiration of the notice which shall

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not then have continued for ten years shall be continued up to the expiration of the period of ten years from the date when such supply shall have first commenced and the Corporation shall not use electrical energy generated by them for the purpose of affording any supply so continued until the expiration of such last-mentioned period of ten years.

As to
exchange of
certain lands
part of
Rutherford
College.

102. The Corporation may with the consent of the Board of Education apply to the purposes of Part III. of the Education Act 1902 the piece of land coloured red on the plan signed in duplicate by Norval Watson Helme the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which is deposited in the Private Bill Office of the House of Commons and the other in the Office of the Clerk of the Parliaments in the House of Lords) and such piece of land is hereby freed and discharged from all trusts obligations duties and powers under and in pursuance of the order of the Board of Education made the seventh day of February one thousand nine hundred and seven or otherwise attaching thereto There shall be exchanged for such piece of land the piece of land coloured blue on the plan signed and deposited as aforesaid and the trusts obligations duties and powers of the Corporation as the trustees of Rutherford College attaching to the said piece of land coloured red shall be transferred and attach to and be exerciseable by the Corporation in respect of the said piece of land coloured blue and the Corporation shall hold and use the said piece of land coloured blue accordingly.

Payment of
rate not to
disqualify
sheriff &c.
from acting
under Lands
Clauses Acts.

103. The sheriff or coroner of the city or the sheriff or coroners of the county of Northumberland or any person who has been sheriff or coroner of the city or county of Northumberland shall not be disqualified from acting under the provisions of the Lands Clauses Acts by reason of liability to the payment of rates in the city or in the said county.

Confirmation
of by-laws.

104. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to by-laws made by an urban sanitary authority shall except where otherwise provided apply to all by-laws made by the Corporation under the powers of this Act.

105. Any person deeming himself aggrieved by any order judgment determination or requirement made or given under the provisions of this Act or the withholding or revocation of any certificate licence permission consent or approval to be granted under the provisions of this Act of or by the Corporation or of or by any officer of the Corporation or by any conviction order or determination made by a court of summary jurisdiction under any provision of this Act may unless any other method of appeal shall be provided appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order or determination the Corporation may appeal and in the like manner.

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As to
appeals.

106. Save as otherwise by this Act specially provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any by-law made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

107. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Compensa-
tion &c. how
to be
determined.

108. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Compensa-
tion may be
in land &c.

109. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall

Saving for
indictments
&c.

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A.D. 1911. — relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Recovery of demands.

110. Proceedings for the recovery of any demand made under the authority of this Act or the former Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Powers of Act cumulative.

111. The provisions of section 46 (Powers of Act cumulative) of the Act of 1902 shall be incorporated with and form part of this Act.

Saving rights of Tyne Improvement Commissioners.

112. Save as in this Act provided nothing in this Act contained shall in any manner prejudice diminish alter or take away any of the rights or privileges or any power jurisdiction or authority now vested in or enjoyed by the Tyne Improvement Commissioners but all such rights and privileges and every such power jurisdiction and authority shall save as aforesaid continue and be in force as if this Act had not been passed.

Crown rights.

113. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

114. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate the improvement rate the city fund and city rate the tramway revenue and the tramway rate and the district fund and general district rate in equal proportions or out of moneys to be borrowed under the provisions of this Act as herein-before provided.

The SCHEDULES referred to in the foregoing Act. A.D. 1911.

THE FIRST SCHEDULE.

FORMER ACTS AND ORDERS.

1 Victoria chapter lxxii. "The Newcastle-upon-Tyne Improvement Act 1837."

4 & 5 Victoria chapter lxxi. "The Newcastle-upon-Tyne Improvement Act 1841."

9 & 10 Victoria chapter cxxi. "The Newcastle-upon-Tyne Improvement Act 1846."

13 & 14 Victoria chapter lxxvii. "The Newcastle-upon-Tyne Improvement Act 1850."

16 & 17 Victoria chapter clxxxii. "The Newcastle-upon-Tyne Improvement Act 1853."

18 & 19 Victoria chapter xcix. "The Newcastle-upon-Tyne Improvement Act 1855."

28 & 29 Victoria chapter ccl. "The Newcastle-upon-Tyne Improvement Act 1865."

33 & 34 Victoria chapter cxx. "The Newcastle-upon-Tyne Improvement Act 1870."

34 & 35 Victoria chapter cxxxv. "The Newcastle-upon-Tyne Improvement Act 1871."

40 & 41 Victoria chapter cli. "The Newcastle-upon-Tyne Tramways and Improvement Act 1877."

"The Newcastle-upon-Tyne Tramways Order 1879" confirmed by "The Tramways Orders Confirmation Act 1879" 42 & 43 Victoria chapter cxci.

45 & 46 Victoria chapter clxxii. "The Newcastle-upon-Tyne Improvement Act 1882."

45 & 46 Victoria chapter ccxxxv. "The Newcastle-upon-Tyne Corporation Loans Act 1882."

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A.D. 1911. Provisional Order relating to the City of Newcastle-upon-Tyne confirmed by "The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1887" 50 & 51 Victoria chapter cxi.

55 & 56 Victoria chapter ccxxxvi. "The Newcastle-upon-Tyne Improvement Act 1892."

57 & 58 Victoria chapter cxi. "The Newcastle-upon-Tyne Corporation (Byker Bridge &c.) Act 1894."

"The Newcastle-upon-Tyne Tramways Order 1895" confirmed by "The Tramways Orders Confirmation (No. 2) Act 1895" 58 & 59 Victoria chapter ci.

61 & 62 Victoria chapter ccxxvii. "The Newcastle-upon-Tyne Corporation (New Infirmary Site) Act 1898."

62 & 63 Victoria chapter cclxv. "The Newcastle-upon-Tyne Tramways and Improvement Act 1899."

2 Edward VII. chapter cxxi. "The Newcastle-upon-Tyne Corporation Tramways Extensions Act 1902."

"The Newcastle-upon-Tyne Corporation Tramways Order 1903" confirmed by "The Tramways Orders Confirmation (No. 1) Act 1903" 3 Edward VII. chapter cxlv.

4 Edward VII. chapter ccxx. "The Newcastle-upon-Tyne Corporation Act 1904."

"The Newcastle-upon-Tyne (Extension) Order 1904" confirmed by "The Local Government Board's Provisional Orders Confirmation (No. 13) Act 1904" 4 Edward VII. chapter clxii.

5 Edward VII. chapter clxxii. "The Newcastle-upon-Tyne Corporation (Tolls) Act 1905."

"The Newcastle-upon-Tyne Corporation Tramways Order 1906" confirmed by "The Tramways Orders Confirmation Act 1906" 6 Edward VII. chapter cxxxiv.

"The Newcastle-upon-Tyne Order 1910" confirmed by "The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1910" 10 Edward VII. and 1 George V. chapter lxxxvi

THE SECOND SCHEDULE.

A.D. 1911.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY
 BE REQUIRED.

Parish.	Numbers on Deposited Plans.
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STREET WORK No. 2.

Benwell (city and county of New- castle-upon-Tyne).	15, 17.
East Denton (urban district of New- burn).	18, 19.

STREET WORK No. 5.

East Denton (urban district of New- burn).	41, 41A, 43 to 50 (both numbers inclu- sive), 60.
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STREET WORK No. 6.

East Denton (urban district of New- burn).	45 to 50 (both numbers inclusive), 52, 54 to 57A (both numbers inclusive), 60 to 63 (both numbers inclusive), 64A.
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STREET WORK No. 7.

Sugley (urban district of Newburn).	73, 74, 76, 77, 78, 79, 80, 81, 82.
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STREET WORKS Nos. 8 AND 9.

Newburn Hall (urban district of New- burn).	85, 85A, 86, 87, 88, 89.
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STREET WORK No. 10.

Newburn Hall (urban district of New- burn).	95, 96, 97, 98, 99, 100.
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THE SECOND SCHEDULE—*continued.*

Parish.	Numbers on Deposited Plans.
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STREET WORK NO. 13.

Newburn (urban district of Newburn).	134, 135, 136, 137, 140, 141, 143, 147, 152, 153, 157, 160, 161, 162, 168, 169A, 170, 172 to 182A (both numbers inclusive), 183, 183A, 184, 184A, 185, 185A, 186, 186A, 187 to 189C (both numbers inclusive) 196, 197, 198, 199, 199B, 201, 203, 203A.
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STREET WORK NO. 14.

Jesmond (city and county of Newcastle-upon-Tyne).	206 to 212 (both numbers inclusive).
Heaton (city and county of Newcastle-upon-Tyne).	209, 210.

STREET WORK NO. 15.

Heaton (city and county of Newcastle-upon-Tyne).	222.
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THE THIRD SCHEDULE.

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FORM OF MORTGAGE.

By virtue of the Newcastle-upon-Tyne Corporation Act 1911 and of other their powers in that behalf them enabling the Lord Mayor Aldermen and Citizens of the City and County of Newcastle-upon-Tyne (herein-after referred to as "the Corporation") in consideration of the sum of

pounds paid to the Treasurer of the City by

(herein-after referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid and satisfied

with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of One thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the Town Hall in the said City (subject as hereinafter provided) [on the day of One thousand nine hundred and] [by

] [at the expiration of six calendar months from the giving by the mortgagee of written notice addressed to the Town Clerk at the Town Hall Newcastle-upon-Tyne requiring payment of the said principal sum but such notice shall not be given before the day of and the Corporation may pay off the same sum at any time after the said date on giving a like notice]:

Provided always and it is hereby agreed and declared that the before-mentioned time [before which notice cannot be given] for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned and specified in an endorsement to be made hereon under the hand of the Lord Mayor and Town Clerk of the City for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

IN WITNESS whereof the Corporation have caused their corporate seal to be hereunto affixed this day of One thousand nine hundred and

[Ch. cxix.] *Newcastle-upon-Tyne Corporation* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned
time [before which notice cannot be given] for repayment of the within-
mentioned principal sum of _____ is hereby extended to the
_____ day of _____ One thousand nine hundred and
[and the interest to be paid thereon on and from the
_____ day of _____ One thousand nine hundred and
is hereby declared to be at the rate of _____ per centum per annum.]

Dated this _____ day of _____ One thousand nine
hundred and _____

THE FOURTH SCHEDULE:

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____
[of _____] in consideration of the sum of
_____ pounds paid to me by _____
of _____ (herein-after referred to as "the transferee")
do hereby transfer to the transferee [his] executors administrators and assigns
[the within-written security] [the mortgage number _____ of
the revenues of the Lord Mayor Aldermen and Citizens of the City and
County of Newcastle-upon-Tyne bearing date the _____ day of
_____] and all my right and interest under the same subject
to the several conditions on which I hold the same at the time of the
execution hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security subject to
the same conditions.

Dated this _____ day of _____ One thousand nine
hundred and _____

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